

24CHCV03572 24CHCV03572

County: los-angeles

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Case Number: 24CHCV03572 Hearing Date: September 9, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

SEPTEMBER 9,

2026

MOTION TO VACATE/SET ASIDE ENTRY

OF DEFAULT

Los Angeles Superior Court Case # 24CHCV03572

Motion

Filed: 3/30/26

MOVING PARTY: Defendants Caruso's Italian Kitchen;

Caruso's Cucina Italiana; and Hani Mammo (collectively, "Moving Defendants")

RESPONDING PARTY: Plaintiff Yoselin Zavala ("Plaintiff")

NOTICE:

NOT OK (misstates

that date of entry of default)

RELIEF

REQUESTED: An

order vacating the default entered against Moving Defendants on 11/5/25.

TENTATIVE

RULING: The

motion is granted. Moving Defendants to separately file and serve their proposed answer within 10 days.

BACKGROUND

This is an employment action in which Plaintiff alleges various Labor Code violations against Defendants while she was employed “as a hostess from approximately August 1, 2024 to approximately August 16, 2024.” (FAC ¶ 30.)

On 10/3/24, Plaintiff filed her original complaint against Defendants, alleging the following causes of action: (1) Failure to Pay Minimum Wage; (2) Failure to Provide Rest Periods; (3) Failure to Provide Meal Periods; (4) Failure to Maintain Accurate Payroll Records; (5) Failure to Provide Accurate Itemized Wage Statements; (6) Violations Of Child Labor Laws; (7) Unfair Competition; and (8) Violations of California Labor Code.

On 2/19/25, Plaintiff filed her first amended complaint (“FAC”), alleging against Defendants the following causes of action: (1) Violation of the Private Attorneys General Act; (2) Failure to Pay Minimum Wage; (3) Failure to Compensate for All Hours Worked; (4) Failure to Pay Overtime Compensation; (5) Failure to Pay Rest Period Compensation; (6) Failure to Pay Meal Period Compensation; (7) Failure to Furnish Accurate Wage and Hour Statements; (8) Failure to Pay Wages Upon Discharge; (9) Statutory Penalties; (10) Failure to Indemnify and Illegal Deductions from Wages; and (11) Unfair Competition.

On 11/5/25, the Court entered default against Moving Defendants. On 3/30/26, Moving Defendants filed the instant motion. On 8/27/26, Plaintiff filed her opposition. On 9/3/26, Moving Defendants filed their reply.

ANALYSIS

A.

Attorney Mistake/Neglect

“The court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney’s client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney’s client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc. § 473, subd. (b).)

Here, Moving Defendants argue that their “failure to appear in this case is the result of broken agreements between counsels and the reasonable belief of Defendant’s counsel that Plaintiff’s counsel had agreed to wait until after a pending Motion to Consolidate was heard to file defaults.” (Defs.’ Mot. 3:2–4.) Moving Defendants rely on an email communication wherein Plaintiff’s counsel stated that he would “hold off on filing requests for default for the time being.” (Id. at 3:17–28.) Moving Defendants further contend that on 10/31/25, Plaintiff’s counsel stated that “the Defendants responsive pleadings deadline has not expired.” (Ex. A to Decl. of James Howard.) Moving Defendants argue that “this default is clearly the result of a failed agreement between counsels. At-worst this default is the result of Defendants’ counsel trusting Plaintiff’s Oct. 31, 2025 e-mail regarding the agreement between counsels.” (Defs.’ Mot. 5:21–25.)

In opposition, Plaintiff argues that the 10/31/25 email “was a typo. Plaintiff’s counsel immediately sent a follow-up email at 1:05 p.m. fixing the error, by stating: ‘*Defendants responsive pleadings deadline has now expired.’” (Pl.’s Opp. 3:3–5, citing Ex. 2 to Decl. of Grigor Sirmabekian.) “Defendants [sic] Motion to Set Aside Defaults on page 2 only reflects Plaintiff’s counsel initial email which included the typo, and fails to show the follow-up email just 6-minutes later fixing the error. By doing so Defendants are attempting to mislead the Court to believe that Plaintiff confirmed not to seek defaults.” (Id. at 3:7–10.) “Further, on November 1, 2025, Plaintiff’s counsel provided explicit notice to defense counsel stating: ‘Defendants are on notice that we intend to file for entry of defaults soon. Thank you.’ The Defendants still failed to respond.” (Id.

at 3:11–13, citing Ex. 3 to Sirmabekian Decl.)

Plaintiff therefore argues that

“even if Defendants could initially rely on Plaintiff’s temporary agreement, that reliance became unreasonable once Plaintiff provided subsequent written notice. Plaintiff later: confirmed that Defendants’ deadline had expired; and explicitly warned that defaults would be taken. At that point, any reasonable attorney would understand that no extension remained in effect. Defendants nevertheless failed to act.” (Id. at 5:2–6.) Plaintiff further argues that “mandatory relief under Section 473(b) requires an attorney affidavit admitting fault. Here, Defendants provide no such admission. Their counsel does not accept responsibility for the default and instead attempts to attribute it to an alleged ‘agreement.’” (Id. at 4:10–12.)

In reply, Moving Defendants’

counsel submits a supplemental declaration stating “that my initial declaration did not clearly enough state that these defaults were the result of attorney error. The purpose of this declaration is to better clarify that.” (Supp. Decl. of James Howard ¶ 1.) “The entry of these defaults is due to and caused by my error of mis-understanding the e-mails by Plaintiff’s counsel and missing one of the dozens of e-mails going back and forth in a flurry at that time.” (Id. at ¶ 3.) “I am submitting this to clarify that my error is the cause of the entry of these defaults and the cause for the motions not being filed until March 2026.” (Id. at ¶ 8.)

The Court notes that “because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233.) Based on the foregoing, the Court finds that the supplemental attorney affidavit satisfies the purposes of the mandatory relief provisions of Code of Civil Procedure section 473, subdivision (b). Accordingly, the motion is granted.

B.

Fees and Costs

“The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” (Code Civ. Proc. § 473, subd. (b).) In granting the instant motion, the Court orders Moving

Defendants to pay Plaintiff compensatory legal fees and costs in an amount to be determined.

CONCLUSION

The motion is granted. Moving Defendants to separately file and serve their proposed answer within 10 days.